

Background

*Defendant filed a motion to compel arbitration and stay the action.
Plaintiff, on 12/29/25, filed notice of non-opposition and further requested Stay or Dismissal.*

Disposition

*Defendant's Motion is granted.
Case will be dismissed, upon request of Plaintiff.*

**8. 9:00 AM CASE NUMBER: L25-08939
CASE NAME: CAPITAL ONE, N.A. VS. MICHELLE BEN
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: BEN, MICHELLE Y
*TENTATIVE RULING:***

Background

Defendant filed, on December 8, 2025, a Motion to Set Aside Default, claiming a lack of actual notice under Sections 473(b) and 473.5 of the Code of Civil Procedure.

The Default Judgment was filed November 20, 2025.

Plaintiff filed a timely response.

Analysis

Defendant claims that they were never personally served with the Summons or Complaint, prior to the entry of the default judgment.

Plaintiff filed a Proof of Service, on November 20, 2025, indicating personal service on a Michelle Y. Ben, who confirmed their identity. The service was effected on September 7, 2025, and was completed by a registered process server.

This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Moreover, the service was effected at the same address as listed on the account statement for Defendant, a copy of which was included in Plaintiff's response.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order.